

26STCV11714 26STCV11714

County: los-angeles

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Case Number: 26STCV11714 Hearing Date: August 25, 2026 Dept: 307

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TENTATIVE RULING 9:15

a.m., Tuesday, August 25, 2026

JANE DOE

v. NOEL ANDRES RUIZ, et al. [26STCV11714]

DEFENDANT

LOS ANGELES UNIFIED SCHOOL DISTRICT'S MOTION TO STRIKE A PORTION OF PLAINTIFF'S COMPLAINT

MEET AND

CONFER: DEFECTIVE Although

counsel for moving party sent written meet and confer correspondence, he fails to indicate whether the parties met and conferred telephonically, by video conference, or in-person in compliance with Code Civ. Proc. § 430.41 (Lee Decl., ¶¶ 3, 5.)

TIMELINE: Revivor childhood sexual abuse per CCP § 340.11

1999-2000: Plaintiff Jane Doe ("Plaintiff"), who is now 39 years old, attends Elizabeth Learning Center ("ELC") for the seventh-grade school year.

2000-2001: Plaintiff first meets Defendant Noel Andres Ruiz ("Ruiz"), the older brother of Plaintiff's friend, when she is in eighth grade at ELC.

2001-2002: Plaintiff enters her ninth-grade year at ELC and joins ELC's girls' varsity basketball team. Ruiz, who was 19 years old at the time, serves as ELC's head basketball coach. During Fall 2001, Ruiz begins grooming Plaintiff with the intent to sexually abuse her. During late 2001, Ruiz began sexually abusing Plaintiff. Plaintiff was 14 years old at the time. The abuse occurred on the ELC campus, including in storage and weight rooms, while traveling in Ruiz's vehicle, and at various off campus locations. The sexual abuse continued until August 2003, when Plaintiff was 16 years old and Ruiz was 22 years old.

Plaintiff

alleges employees, administrators, and personnel at Defendant Los Angeles Unified School District ("LAUSD") witnessed inappropriate conduct by Ruiz but did nothing to investigate or intervene.

4/13/2026: Plaintiff files the Complaint, alleging causes of action for:

1. Sexual Abuse/Sexual Battery of a Minor

2. Intentional Infliction of Emotional Distress

3. Negligent Hiring, Supervision & Retention of an Unfit Employee

4. Breach of Mandatory Duty: Failure to Report Suspected Child Abuse (Gov. Code § 815.6; Pen. Code §§ 11166 et seq.)

5. Negligent Failure to Warn, Train, or Educate

6. Negligent Supervision of a Minor (Gov. Code §§ 815.2(a), 820)

7. Negligence

7/29/2026: LAUSD files this Motion to Strike,

which is followed by an Amended Motion to Strike on 8/4/2026. Plaintiff files an Opposition to the Amended Motion to Strike on 8/12/2026, which is followed by LAUSD's Reply (8/18/2026).

TENTATIVE

RULING: DEFENDANT LOS ANGELES UNIFIED SCHOOL DISTRICT'S MOTION TO STRIKE A PORTION OF PLAINTIFF'S COMPLAINT is GRANTED.

MOTION TO STRIKE

LAUSD moves for an order striking portions of Paragraphs 46 and 47 from the Complaint, which are alleged in support of Plaintiff's fifth cause of action for failure to warn, train, or educate. This lawsuit arises out of Plaintiff's allegations that she was sexually abused by an LAUSD basketball coach for approximately two years while she was a minor attending high school. In her fifth cause of action, Plaintiff alleges, in part, that LAUSD had a duty to warn, train, and educate students, including Plaintiff, about the known or knowable dangers posed by LAUSD faculty and staff pursuant to Gov. Code

§§ 815.2(a) and 820. (Compl., ¶ 26.) Plaintiff alleges that LAUSD breached this purported duty by failing to warn Plaintiff of the known and knowable dangers by its faculty and staff, including Ruiz, and by failing to inform and educate Plaintiff on LAUSD's sexual harassment policies and the methods to identify, report, and respond to sexual harassment by coaches and student supervisors. (Id. ¶ 47.) LAUSD moves to strike these allegations on the grounds that no such duty to warn, train, and/or educate students exists as a matter of law.

As a preliminary matter, Plaintiff objects to the Amended Motion to Strike on the grounds that it is untimely filed. Under Code Civ. Proc. § 436, the Court may strike out any irrelevant, false, or improper matter inserted in any pleading either pursuant to a noticed motion or at any time in its discretion. The Court, in its discretion, will consider the merits of LAUSD's motion pursuant to Code Civ. Proc. § 436.

Under the Government Claims Act, all government tort liability must arise from statutory or constitutional authority. (County of San Bernardino v. Superior Court (2022) 77 Cal.App.5th 1100, 1107-1108 ["in the absence of some

constitutional requirement, public entities may be liable only if a statute declares them to be liable.”].) Specifically, Gov. Code § 815 “abolishes all common law or judicially declared forms of liability for public entities, except for such liability as may be required by the state or federal constitution....” (Sheppard v. North Orange County Regional Occupational Program (2010) 191 Cal.App.4th 289, 314.)

Here, LAUSD

argues that Plaintiff fails to identify any statutory basis imposing a specific duty upon LAUSD to warn, train, and educate students (as opposed to employees) on the risks of sexual abuse.[1]

Plaintiff’s fifth cause of action is brought pursuant to Gov. Code §§ 815.2, subd. (a) and 820.

(Compl., ¶ 26.) Under Gov. Code § 815.2, a public entity is vicariously liable for an “injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” (Gov. Code, § 815.2, subd. (a).) Gov. Code § 820, subd. (a) clarifies that a public employee is generally “liable for injury caused by his act or omission to the same extent as a private person.” (Gov. Code § 820, subd. (a); see B.H. v. County of San Bernardino (2015) 62 Cal.4th 168, 179.) Under these statutes, LAUSD will be liable to Plaintiff to the extent that its employees would be liable. Gov.

Code §§ 815.2, subd. (a) and 820 merely provide a statutory basis to hold LAUSD vicariously liable for an employee’s breach of duty to Plaintiff while acting within the scope of their employment for LAUSD. These statutes do not, however, establish an independent statutory duty which specifically mandates public school employees to educate students about sexual harassment and abuse.

Plaintiff

responds that the duty of LAUSD employees to warn, train, and educate students about sexual harassment arises by nature of LAUSD employee’s “special relationship” with the district’s students. In the context of public-school districts, it is well established that “a special relationship is formed between a school district and its students so as to impose an affirmative duty on the district to take all reasonable steps to protect its students.” (Virginia G. v. ABC Unified School Dist. (1993) 15 Cal.App.4th 1848, 1853.) Because of this special relationship, “the duty of care owed by school personnel includes

the duty to use reasonable measures to protect students from foreseeable injury at the hands of third parties acting negligently or intentionally.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 870 (C.A.).) “School principals and other supervisory employees, to the extent their duties include overseeing the educational environment and the performance of teachers and counselors, also have the responsibility of taking reasonable measures to guard pupils against harassment and abuse from foreseeable sources, including any teachers or counselors they know or have reason to know are prone to such abuse.” (Id., at p. 871.)

This

“special relationship” doctrine has been invoked to hold a public school district vicariously liable under Gov. Code § 815.2 “for the negligence of administrators or supervisors in hiring, supervising and retaining a school employee who sexually harasses and abuses a student” where the district’s supervisory employees “knew or should have known of [a school employee’s] dangerous propensities, but nevertheless hired, retained and failed to properly supervise” that unfit employee. (Roe v. Hesperia Unified School District (2022) 85 Cal.App.5th 13, 25 (Roe), quoting C.A., supra, 53 Cal.4th at p. 879.) The California Supreme Court has confirmed that “[s]chool principals and other supervisory employees ... also have the responsibility of taking reasonable measures to guard pupils against harassment and abuse from foreseeable sources, including any teachers or counselors they know or have reason to know are prone to such abuse.” (C.A., supra, 53 Cal.4th at p. 871; accord Roe, supra, 85 Cal.App.5th at p. 25.) However, the C.A. decision only articulates a mandatory duty in the context of negligent hiring, supervising, and retention claims related to a public-school district’s unfit employee, or even negligent failure to supervise claims related to the public-school district’s failure to protect minors. (C.A., supra, 53 Cal.4th at pp. 871, 879.) Plaintiff has already alleged two independent claims against LAUSD based on these distinct duties in her third and sixth causes of action. The C.A. decision did not, however, specifically articulate an independent duty to warn, train, or educate students about sexual harassment from foreseeable sources that creates a separate basis for recovery in addition to the duties described above. Plaintiff fails to cite any legal authority which specifically recognizes the existence of a legal duty upon public entities to warn, train, or educate students about sexual harassment which is independent from the existing framework for negligent supervision.

Plaintiff's

reasoning that a distinct claim for the failure to warn, train, and educate students exists separately from the duty to supervise employees and students is also inconsistent with the Legislature's delineation of mandatory and discretionary course of study as set forth under the Education Code. For example, Ed. Code § 51220 provides a list of courses of study that "shall" be offered during grades 7 to 12. Education on sexual harassment and abuse is not listed within this mandatory curriculum. By contrast, Ed. Code § 51950, subd. (a) provides that a school district "may" provide education on abuse, including sexual abuse and assault. Because the Legislature expressly intended sexual abuse education to fall within this optional curriculum, to proscribe a mandatory duty to warn, train, and educate students about sexual harassment and abuse based on California case law would be incongruent with the Legislature's clear intent.

Plaintiff's

argument that the Court's refusal to find an independent duty would "entirely absolve" LAUSD from warning and training its students also reaches an overbroad conclusion. The discretionary decision to educate students on sexual abuse is simply one of many avenues available to school districts to comply with their broader duty to "use reasonable measures" to protect students, which creates umbrella duties underlying Plaintiff's claims for negligent supervision, hiring, training, and retention of employees and for negligent supervision of a minor. (C.A., supra, 53 Cal.4th at p. 870.) In light of the lack of specific legal authority identifying a distinct duty to warn, educate, and train students on sexual harassment and abuse, the Court finds that Plaintiff is not entitled to duplicate recovery for negligent omissions that are entirely derivative of the broader duty framework for public school districts.

Therefore,

LAUSD's motion to strike portions of Plaintiff's Complaint is GRANTED without leave to amend. Plaintiff's allegations arising from the purported duty to warn, train, and educate students are so stricken from the fifth cause of action in the Complaint. As Plaintiff has not established a legal basis to assert a negligent failure to warn, train and educate students, the Court finds that amending the Complaint to re-assert this claim would be futile.

Defendant Los Angeles Unified School District

to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be

incorporated into the Minute Order.

TR emailed to counsel and posted to court website on 8/24/26 at 2 p.m.

[1] LAUSD

is not moving to strike the allegations pertaining to LAUSD's negligent failure to train and/or educate LAUSD staff on sexual harassment policies and inappropriate boundary crossing with students, which is also alleged as a basis for Plaintiff's fifth cause of action. (Compl., ¶¶ 46-47.)